

# **VIVINT SOLAR DEVELOPER, LLC v CARTWRIGHT**

**24CV47409**

## **PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY ADJUDICATION**

Before the Court is a motion for summary adjudication filed by Vivint Solar Developer, LLC ("Plaintiff") against Shane Cartwright ("Defendant.")

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

**Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]**

However, in the interests of justice and in consideration of the effort put forth by the parties in proposing and opposing the instant motion, the Court opts to set aside the transgression in failing to follow the local rules and rule on the merits of the Motion.

## **I. Factual Background**

On or about October 21, 2015, Defendant executed a Residential Solar Power Purchase Agreement (“Contract”) pursuant to which he promised to purchase from Plaintiff all energy produced by a certain photovoltaic solar system (“Solar System.”) (UMF 1.) The Solar System was installed on real property known as 4348 Messing Rd., Valley Springs, CA 95252 (“Property.”) (*Ibid.*) The parties agree that the Solar System was installed in November 2015 but disagree about whether it was “fully operational” or generating energy. (UMF 2; Declaration of Shane Cartwright (“Cartwright Decl.”) ¶ 13, Ex. A.)

Pursuant to the Contract, Plaintiff would design, install, retain ownership of, maintain, and monitor the Solar System for the term of the Contract. (UMF 3.) Plaintiff alleges that on April 07, 2023, it issued a “Deactivation Notice” to Defendant informing him that he was 105 days delinquent on the Contract and that Plaintiff would be deactivating the Solar System and pursuing remedies. However, Defendant disputes this, stating that he never received such notice either personally or by mail and had not lived at the Property since 2017. (UMF 4; Cartwright Decl. ¶ 5.)

The parties dispute whether Defendant defaulted on the Contract, whether Plaintiff performed all terms of the Contract, and the potential amounts due. (UMFs 5-8; Cartwright Decl. ¶¶ 6-9.)

## **II. Legal Standard**

Summary judgment or adjudication is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action.

(Code Civ. Proc., § 437c, subd. (p)(1).) A plaintiff moving for summary judgment is not required to disprove any defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) If the plaintiff meets its burden, then the burden shifts to the defendant to show the existence of a triable issue of material fact. (*Ibid.*) The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Id.* at 850.)

### III. Legal Analysis

The essential elements for a claim of breach of contract include proof of: (1) the contract; (2) plaintiff's performance of the contract or excuse for nonperformance; (3) defendant's breach; and (4) resulting damages. (*Otworth v. So. Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 458.)

There is no dispute that the parties entered into a contract. However, there are significant disputes of material fact regarding Plaintiff's performance of the contract and Defendant's breach. Defendant avers, and presents evidence, that the Solar System was not operative for several months after it was installed. (UMF 2; Cartwright Decl. ¶ 13, Ex. A.) Defendant also avers that Plaintiffs had an obligation under the contract to maintain and monitor the Solar System appropriately but failed to do so, resulting in excessive energy use and bills. (*Id.* ¶ 7.)

"Generally, a party's failure to perform a condition precedent will preclude an action for breach of contract." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1192.) Here, there remain significant issues of material fact regarding whether Plaintiffs performed their obligations under the Contract, thereby alleging a defense to the claims that Defendant breached the Contract.

Accordingly, Plaintiff's motion for summary judgment/adjudication is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling is required.

# PURDY, et al v MERRICK

24CV47781

## PLAINTIFFS' MOTION FOR JUDGMENT ON PARTITION (AND VARIOUS RELATED ORDERS)

This case involves a complaint to partition real property located at 1439 Calaveritas Road, San Andreas, CA 95249 ("Property") brought by Kristie Purdy ("Purdy") and Steven Savickas ("Savickas") (collectively "Plaintiffs") against Robert Merrick ("Defendant").

Now before the Court is Plaintiffs' amended motion for judgment on partition.

### I. Background

On August 14, 2023, the Court ordered Plaintiffs to receive a one-half interest in the Property. (Declaration of Kristie Purdy ("Purdy Decl.") ¶ 1, Ex A.) The deed quitclaiming the one-half interest was recorded on August 16, 2023. (*Id.* Ex. B.) Plaintiffs are tenants in common with Defendant with Plaintiffs each owning an undivided one-quarter interest, and Defendant owning an undivided one-half interest in the Property. (*Id.* ¶ 3.)

On April 27, 2024, Plaintiffs and Defendant all signed an agreement in which Defendant agreed to pay the following: 1) Legal fees of \$58,918.74; 2) Mortgage reinstatement of \$40,915.27; 3) Removal of tenants of \$5,365.00; and 4) Property cleanup of \$8,898.66. (Purdy Decl. ¶ 4, Ex. C.) On May 18, 2024, the Plaintiffs and Defendant signed an addendum in which Defendant agreed to pay the following additional expenses from his share of the Property sale proceeds: 1) Mortgage of \$385.65; 2) Property expenses of \$13,868.46; and; 3) Tenant removal of \$303.00. (*Id.* ¶ 6., Ex. D.) (for a total of \$114,907.67.)

In or about July 2024, Plaintiffs lost contact with Defendant. (Purdy Decl. ¶ 8.) Since then, Plaintiffs have incurred additional Property-related expenses totaling \$36,045.05. (*Id.* ¶ 9, Ex. E.)

Plaintiffs filed their Complaint for Partition on December 17, 2024. On April 5, 2024, the Court granted Plaintiffs' motion for service by publication. Plaintiffs completed the process of service by publication on or about May 15, 2025. (Declaration of Kristie Purdy Re: Service, ¶¶ 1-4.)